Reinaldo Aguiar Marcano
2302 Britton Ridge Drive, Katy TX 77494
https://xislist.org/ (ISBN 9781971481296)

FORMAL ADMINISTRATIVE CLAIM FOR PATENT INFRINGEMENT UNDER DFARS 227.7004 AND NOTIFICATION OF PROCUREMENT IRREGULARITIES CONCERNING PERPETUALLY LICENSED TECHNOLOGIES

This notice:
https://storage.googleapis.com/rj-aguiar/01_DFARS_227.7004_Plantir-and-Anduril-Industries.pdf

TO: PROCURING CONTRACTING OFFICERS (PCOs) AND DIRECTORS

william.a.creech3.civ@army.mil (William A. Creech, Grants and Contracting Officer, ACC-APG)

mia.a.steele2.civ@army.mil (Mia A. Steele, Procurement Officer, ACC-APG)

tamara.n.jenkins.civ@mail.mil (Tamara N. Jenkins, Contract Specialist, ACC-APG)

undra.n.robinson.civ@mail.mil (Undra Robinson, Contracting Officer, NGA/CDAO)

Emely.E.Winnert@nga.mil (Emely Winnert, Contracting Officer, NGA)

jonathan.elliott@army.mil (Jonathan Elliott, Director AI Rapid Capabilities Cell, CDAO)

AFLCMCJAWorkFlowmail@us.af.mil (General Contracting Office, Air Force Life Cycle Management Center)

CC: EXECUTIVE LEADERSHIP AND MILITARY INTELLECTUAL PROPERTY COUNSEL

The Honorable Emil Michael (Under Secretary of Defense for Research and Engineering / Chief Technology Officer)

Chief of the Intellectual Property Law Division (JALS-IP), U.S. Army Legal Services Agency

RE: ACTUAL KNOWLEDGE OF PATENT INFRINGEMENT (35 U.S.C. § 154(d)), INITIATION OF DFARS 227.7004 ADMINISTRATIVE CLAIM, AND NOTIFICATION OF POTENTIAL PROCUREMENT FRAUD BY PALANTIR TECHNOLOGIES AND ANDURIL INDUSTRIES

DATE: April 17, 2026

DELIVERY METHOD: Cryptographically Verified via Registered Email (RPost)

DEAR:

Mr. Creech, Ms. Steele, Ms. Jenkins, Mr. Robinson, Ms. Winnert, Mr. Elliott, and the AFLCMC

ISBN 9781971481296

Contracting Office,

This comprehensive technical and legal brief is served upon you in your official capacities as warranted Procuring Contracting Officers (PCOs) and Directors within the United States Department of Defense (DoD).

This document constitutes a formal Administrative Claim for Patent Infringement under the Defense Federal Acquisition Regulation Supplement (DFARS) 227.7004.[1] The purpose of this claim is to notify the United States Government of a highly anomalous and legally precarious situation involving the unauthorized commercialization of a foundational patent portfolio by major defense contractors—namely Palantir Technologies and Anduril Industries.[1]

I. The Jurisprudential Paradox: Eminent Domain vs. The Perpetual License

Under standard operating procedures defined by 28 U.S.C. § 1498, the United States Government exercises eminent domain over domestic patents, shielding its defense contractors from civil injunctions and assuming financial liability for infringement.[1]

However, the situation at hand introduces a critical jurisprudential paradox. The inventor of the Aguiar Marcano Intellectual Property Portfolio—which comprises 52 foundational patent applications published defensively in *The Architecture of Control* (ISBN 978-1-97-148129-6)—has proactively granted an irrevocable, perpetual, no-fee license to the federal government for all national defense purposes.[1] Consequently, the U.S. Government owes absolutely no royalties for the utilization of these systems.[1]

The legal friction immediately shifts. Defense contractors (Palantir and Anduril) are currently utilizing these specific patented architectures and subsequently embedding the research, development, and licensing costs of these technologies into their multi-billion-dollar government contracts.[1] They are effectively charging the American taxpayer for intellectual property that the government already possesses the legal right to utilize indefinitely and without cost.[1]

This scenario transcends standard patent infringement; it borders on procurement fraud, waste, and abuse of federal funds.[1] Failing to halt the disbursement of funds to these contractors for pre-licensed intellectual property constitutes complicity in corporate intellectual property theft and a gross mismanagement of taxpayer dollars.[1]

II. Satisfaction of DFARS 227.7004 Administrative Claim Requirements

ISBN 9781971481296

To compel immediate administrative intervention, this communication strictly adheres to the requirements of DFARS 227.7004(a) and (b):[1]

1. **Allegation of Infringement:** We formally allege that the systems provided by Palantir Technologies and Anduril Industries directly infringe upon the patent applications detailed below.[1]
2. **Request for Compensation:** Because the government holds a free license to this portfolio, our request for compensation is a formal legal demand that the DoD immediately cease compensating the infringing contractors for the licensed intellectual property.[1]
3. **Citation of Patents:** The infringed applications include USPTO 19/639,219; 19/640,945; 19/560,038; 19/560,065; 19/559,957; 19/559,873; and 19/559,842.[1]
4. **Identification of Procurements:** See Section III below for the specific systems and contracting activities.[1]
5. **Element-by-Element Comparison:** The required claim maps demonstrating precisely how the representative claims map to the accused software and processes are attached to this verified transmission.[1]

III. Technological Nexus and Targeted Procurements

The operational methodologies of Palantir Technologies and Anduril Industries intersect directly with these proprietary claims, making their government contracts highly susceptible to this administrative review.[1]

A. Palantir Technologies (Project TITAN & Project Maven)

Responsible Activities: Army Contracting Command - APG (Belvoir Division) & National Geospatial-Intelligence Agency / CDAO[1] **Notified PCOs/Directors:** William A. Creech, Mia A. Steele, Tamara N. Jenkins, Undra Robinson, Emely Winnert, and Jonathan Elliott.[1]

Palantir's flagship platforms, Gotham and Foundry, specialize in integrating massive datasets to construct complex dependency graphs utilized by intelligence agencies.[1]

- **USPTO 19/559,957 (Power Holder Analysis in Social Networks):** Palantir's analytical methodologies for Project TITAN and Project Maven directly mirror our systemic method for analyzing network dependency graphs to identify indispensable bottlenecks.[1]
- **USPTO 19/559,873 (Information Leak-Proofing of Organizations):** Palantir's internal security infrastructure infringes upon our method of calculating precise "blast radius" vulnerability scores for individual users.[1]

ISBN 9781971481296

B. Anduril Industries (Collaborative Combat Aircraft & Ghost Drones)

Responsible Activities: Air Force Life Cycle Management Center (AFLCMC) & U.S. Special Operations Command (USSOCOM)[1] **Notified PCOs:** AFLCMC General Contracting Office[1]

Anduril relies heavily on Lattice OS to formulate a real-time command and control center for autonomous systems.[1]

- **USPTO 19/559,842 (Coordinated Dual-Vehicle Scanning):** The deployment of autonomous, multi-modal surveillance systems operating in tandem is heavily encumbered by our patent, which explicitly claims the methodology for coordinating multiple scanning vehicles via a secure link to fuse multi-spectral data.[1]
- **USPTO 19/560,065 (Autonomous Robotic Data Logistics):** Anduril's operations in contested environments intersect directly with our claimed mechanisms for using autonomous robotic units to physically retrieve and transport high-capacity data payloads.[1]

IV. Immutable Audit Trail and Mandatory Administrative Action

This formal claim is delivered via Registered Email (RPost). This service provides an immutable, cryptographically verified audit trail, including proof of delivery, message content, and the exact official time of sending and opening.[1]

By delivering this DFARS-compliant claim via RPost, we establish undeniable "Actual Notice" under 35 U.S.C. § 154(d).[1] More importantly, this verified delivery strips the targeted military and civilian agencies of "plausible deniability."[1]

As warranted Procuring Contracting Officers, if you receive cryptographically verified proof that a contractor is charging the government for freely available intellectual property, your failure to initiate an audit or halt payments leaves a permanent digital footprint of your inaction.[1] This exposes you, as individual officials, to severe administrative, ethical, and potentially criminal liability for gross negligence, dereliction of duty, or complicity in procurement fraud.[1]

Pursuant to federal acquisition regulations, you are hereby mandated to halt the assumption of clear title, freeze approvals related to the disputed intellectual property, and forward this communication immediately to the Chief of the Intellectual Property Law Division (JALS-IP) within your respective military branches.[1]

Govern yourselves accordingly.

ISBN 9781971481296

Works cited

1. DoD Patent License Infringement Investigation.pdf

ISBN 9781971481296